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Attorneys for Donald Chae, Debtor-in-Possession

UNITED STATES BANKRUPTCY COURT
CENTRAL DISTRICT OF CALIFORNIA
SANTA ANA DIVISION

In re
DONALD CHAE,
Debtor and Debtor-in-Possession.

Case No. 8:21-bk-12493-SC

Chapter 11

NOTICE OF (1) HEARING ON
CONFIRMATION OF FIRST AMENDED
PLAN OF REORGANIZATION OF
DONALD CHAE; AND (2) DEADLINES
SET BY THE COURT PURSUANT TO
FEDERAL RULE OF BANKRUPTCY
PROCEDURE 3017

Plan Confirmation Hearing (In-Person and
via Zoom for Government):

Date: June 15, 2023

Time: 11:00 a.m.

Ctrm.: 5C

411 West Fourth Street
Santa Ana, California 92701

TO ALL CREDITORS AND PARTIES IN INTEREST:

PLEASE TAKE NOTICE that by order entered on March 9, 2023 [Docket No. 289], the Court approved the *First Amended Disclosure Statement Describing the First Amended Plan of Reorganization of Donald Chae* (the "Disclosure Statement") as containing adequate information as required by 11 U.S.C. § 1125.

PLEASE TAKE FURTHER NOTICE that, in connection with approving the Disclosure Statement, the Court set certain dates and deadlines as follows:

1. **Confirmation Hearing Date:** On **June 15, 2023, at 11:00 a.m.** (the "Confirmation Hearing"), in Courtroom 5C of the United States Bankruptcy Court, Central District of California, Santa Ana Division, located at 411 West Fourth Street, Santa Ana, California, the Court will hold a hearing in-person and via Zoom for Government to consider confirmation of the *First Amended Plan of Reorganization of Donald Chae* (the "Plan") proposed by Donald Chae (the "Debtor"). The Confirmation Hearing will be a hybrid hearing in that persons wishing to attend the hearing may do so either in-person or via Zoom for Government. Those who wish to appear via Zoom for Government should check the Court's tentative ruling for further information on how to appear at the hearing, available on the Court's website at <https://www.cacb.uscourts.gov/judges/honorable-scott-c-clarkson>.

2. **Voting Deadline:** If you are entitled to vote to accept or reject the Plan, then you have received a ballot form and voting instructions. Ballots accepting or rejecting the Plan must be returned so that they are **ACTUALLY RECEIVED** by the Debtor's counsel, Smiley Wang-Ekvall, LLP, Attention: Timothy W. Evanston, 3200 Park Center Drive, Suite 250, Costa Mesa, California 92626, **by no later than April 28, 2023** ("Voting Deadline"). Regardless of how they are sent, any ballots received after the Voting Deadline will not be counted.

Ballots may be returned to the Debtor's counsel by any of the following methods, although e-mail service is preferred:

- a. By regular mail addressed to Timothy W. Evanston, Smiley Wang-Ekvall, LLP, 3200 Park Center Drive, Suite 250, Costa Mesa, California, 92626;
- b. By email to tevanston@swelawfirm.com; or
- c. By facsimile to (714) 445-1002.

3. **Confirmation Memorandum:** The Debtor shall file and serve its ballot tabulation summary and memorandum of points and authorities in support of confirmation of the Plan, together with any declaration(s) or other evidence in support of confirmation of the Plan on or before **May 12, 2023**.

4. **Objections to Confirmation:** Any response, opposition, or objection to the confirmation of the Plan and any declarations or other evidence in support of such response,

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4. **Objections to Confirmation:** Any response, opposition, or objection to the confirmation of the Plan and any declarations or other evidence in support of such response,

1 opposition, or objection must be filed with the Court and served on counsel for the Debtor on or
2 before **June 1, 2023**.

3 5. **Replies to Objections:** Replies to any response, opposition, or objection to the
4 confirmation of the Plan and any declarations or other evidence in support of such reply must be
5 filed and served on or before **June 8, 2023**.

6 **PLEASE TAKE FURTHER NOTICE** that if you did not receive a copy of the
7 Disclosure Statement and Plan concurrently with this Notice, then an electronic or paper copy of
8 the Disclosure Statement and Plan are available from the Court's website or upon written request
9 to Timothy W. Evanston, Smiley Wang-Ekvall, LLP, 3200 Park Center Drive, Suite 250, Costa
10 Mesa, California 92626, or email request to tevanston@swelawfirm.com.

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12 DATED: March 10, 2023

SMILEY WANG-EKVALL, LLP

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15 By: /s/ Robert S. Marticello
16 ROBERT S. MARTICELLO
17 Attorneys for Donald Chae, Debtor-in-Possession
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